

INTELLECTUAL PROPERTY ESCROW AGREEMENT (REVISED VERSION)

Navallo & Reyes Legal Associates
Davao City, Philippines

This Intellectual Property Escrow Agreement ("Agreement") is entered into by and between:

Licensors: _____

Licensee: _____

Escrow Agent: Navallo & Reyes Legal Associates

1. Purpose: The Licensors shall deposit the source code, technical documentation, and related materials into escrow to ensure business continuity for the Licensee and its authorized affiliates. [ADDED: Coverage now extends to subsidiaries and successor entities.]

2. Deposit Materials: The deposited materials shall include complete source code, system architecture diagrams, database schemas, and administrative credentials necessary for operation. [REVISED: Licensors must update escrow materials every six (6) months.]

3. Release Conditions: The Escrow Agent shall release the materials only upon written certification that:

a) The Licensors have declared bankruptcy;

b) The Licensors have materially breached the License Agreement and failed to cure within thirty (30) days; [REVISED: Added cure period requirement.]

c) The Licensors have ceased operations for more than sixty (60) days. [REVISED: Reduced from 90 days to 60 days.]

4. Confidentiality: All deposited materials shall remain strictly confidential and shall not be disclosed except under the release conditions stated herein. [ADDED: Escrow Agent must implement industry-standard cybersecurity safeguards.]

5. Governing Law: This Agreement shall be governed by the laws of the Republic of the Philippines. [NO CHANGE]

Executed this ____ day of _____, 2026.